

Court No. - 1

Case :- WRIT - C No. - 32425 of 2019

Petitioner :- Amar Singh And 16 Others

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Chandra Narayan Mishra

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Ramesh Sinha, J.

Hon'ble Ajit Kumar, J.

Heard Sri Chandra Narayan Mishra, learned counsel for the petitioners and Sri S. K. Tripathi, learned counsel for respondent.

Learned counsel for the petitioners has come up before this Court disputing the bill which is in question.

Learned counsel appearing for the Electricity Department has raised preliminary objection that the petitioners have alternative remedy to file representation before the appropriate authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005 and against the order passed thereunder, the petitioners have remedy to approach UPERC (Consumer Grievance Redressal Forum & Electricity Ombudsman) Regulations, 2007.

In view of the above, we **dispose of** the writ petition with liberty to the petitioners that in the event they apply for under Clause 6.5 of the U.P. Electricity Supply Code, 2005 against the disputed bill within ten days from today along with certified copy of this order the same shall be considered in accordance with law and shall be disposed of within a further period of six weeks.

Order Date :- 1.10.2019

Nitin Verma

(Ajit Kumar, J.) (Ramesh Sinha, J.)

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Hon'ble Ajit Kumar,J.

(Civil Misc. Time Extension Application No. 2 of 2019)

Put up with previous papers on 23.11.2019.

Order Date :- 21.10.2019

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(Ajit Kumar,J.) (Ramesh Sinha,J.)

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Hon'ble Ajit Kumar,J.

Ref: Order on Civil Misc. (Correction) Application No.Nil of 2019

Heard Sri Chandra Narayan Mishra, learned counsel for the applicant/petitioner, Sri S. K. Tripathi, learned counsel for respondent Nos.2 to 4 and learned Standing Counsel for the State.

A mention has been made by learned counsel for the petitioner that though vide order dated 21.10.2019 the matter was fixed for 23.10.2019 for consideration of application seeking extension of time but due to inadvertent mistake the date in the order got transcribed as 23.11.2019.

Under the circumstances, the present correction application filed by the petitioner in the Court, is entertained and Sri S. K. Tripathi, learned counsel for respondent Nos.2 to 4 has no objection to the same. The records are accordingly summoned.

Correction application is **allowed** and accordingly the date fixed in the matter as 23.11.2019 in our order dated 21.10.2019 is corrected as 23.10.2019 and the same is treated as such.

Office is directed to allot regular number to this application.

With consent of the parties, the matter is directed to be placed tomorrow, i.e., on **24.10.2019** before the Court for consideration of application seeking extension of time.

Order Date :- 23.10.2019

Nitin Verma

(Ajit Kumar, J.) (Ramesh Sinha, J.)

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Counsel for Petitioner :- Chandra Narayan Mishra

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Ramesh Sinha,J.

Hon'ble Ajit Kumar,J.

In Re: Time Extension Application No. 2 of 2019.

Heard Sri Chandra Narayan Mishra, learned counsel for the petitioners/ applicants and Sri S.K.Tripathi, learned counsel for the respondent Corporation.

The petitioner has moved time extension application for the period prescribed for under the order dated 1.10.2019 directed the petitioner to apply for under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The time was provided as 10 days. Request has been made on the ground that because of intervening vacations in the High Court, the copy of the order could not be obtained and time got lapsed during vacation itself.

Learned counsel for the respondent has no objection if time application is allowed.

In such view of the matter, the application is allowed.

The petitioners are granted two weeks' time in addition to the time already granted, from today to make appropriate application for the correction of disputed bill as directed under our order dated 1.10.2019. In case, such application is moved, the respondent shall look into the grievance of the petitioner in the light of directions as contained in our order dated 1.10.2019.

Order Date :- 24.10.2019

Sanjeev

(Ajit Kumar,J.) (Ramesh Sinha,J.)